HEADNOTE

> *"1. Rule 30.2 RoP leaves open the timing of a decision on admission of a request to amend the patent and thus places this within the discretion of the court. The judge-rapporteur may therefore also postpone such a decision.*
> *2. Insofar as Rule 32.1 RoP provides a two-month period from service of the request to amend the patent for a reply to such a request, subsequent requests to amend under Rule 30.2 RoP are not covered by this. With such requests, the interests of the defendant cannot be taken into account only within the framework of the decision on admission. Rather, the granting of a fair hearing is also possible outside the time limits laid down in Rule 32 RoP."*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 3 926 698 B1

LIGHT EMITTING DIODE

KEYWORDS

- Application for later amendment of the patent
- Rule 30.2 RoP
- Deferral of the decision on grant
- Period for observations

Rule 30 Application to amend the patent

SUMMARY
The Local Division in Düsseldorf issued a procedural order concerning a light emitting diode patent. The patent at issue relates to light emitting diode technology. According to the headnotes of the decision, Rule 30.2 RoP grants courts discretion over timing for deciding amendment admission requests. The judge-rapporteur may therefore postpone such decisions. Further, Rule 32.1 RoP sets a two-month reply period for initial amendment requests, but this timeline does not apply to subsequent amendment requests. This means that the defendant's interests cannot be protected solely through the admission decision timeframe. As a result, fair hearing rights must be ensured even outside the Rule 32 RoP deadlines when considering subsequent amendment requests.